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AS AMENDED

By: Kirt and Stanley

[State Capitol Building - security plan - committees
- personnel - Commission - duties - Art Collection -
competitive bidding requirements - repealers -
codification -
emergency]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 93 of Title 73, unless there is created a duplication in numbering, reads as follows:

The Department of Public Safety shall create a security plan for the State Capitol Building and grounds. The plan shall be submitted to the State Capitol Preservation Commission. An updated plan shall be submitted every three (3) years.

The Department shall coordinate with the Office of Management and Enterprise Services to implement and staff the approved security plan.

SECTION 2. AMENDATORY 73 O.S. 2021, Section 176, is amended to read as follows:

1 Section 176. A. There shall be ~~established~~ created within the
2 Legislative Service Bureau the position of a permanent legislative
3 ~~liaison committee, composed of three (3) members from each house,~~
4 ~~appointed by the President Pro Tempore and Speaker, respectively~~
5 Capitol Liaison to the State Capitol Preservation Commission. The
6 ~~legislative liaison committee will~~ Capitol Liaison shall keep the
7 Legislature properly advised as to the activities of the Oklahoma
8 Capitol Improvement Authority and the Office of Management and
9 Enterprise Services by making such reports as ~~they deem~~ the Capitol
10 Liaison deems necessary to the appropriate committees and leadership
11 of both houses. All legislative studies concerning the
12 responsibilities or activities of the Oklahoma Capitol Improvement
13 Authority or the Office of Management and Enterprise Services and
14 all studies of activities or projects relating to the ~~Oklahoma~~ State
15 Capitol Complex shall be ~~considered by~~ presented to the ~~liaison~~
16 ~~committee created by this section~~ Capitol Liaison. The Oklahoma
17 Capitol Improvement Authority and the Office of Management and
18 Enterprise Services shall notify the ~~membership of the legislative~~
19 ~~liaison committee~~ Capitol Liaison in advance of any meeting in which
20 official or formal action is to be taken by furnishing the proposed
21 agenda in writing at least twenty-four (24) hours in advance of such
22 meeting.

23 B. The Oklahoma Capitol Improvement Authority and the Office of
24 Management and Enterprise Services shall provide such information,

1 records, testimony, or recommendations as the ~~committee~~ Capitol
2 Liaison may require.

3 C. All proposals for enhancement, modification, preservation,
4 or restoration of the State Capitol Building and grounds shall be
5 submitted to the Capitol Liaison. The Capitol Liaison shall submit
6 all proposals to the State Capitol Preservation Commission for
7 approval.

8 D. All proposals for changes in overall allocation in the State
9 Capitol Building or parking shall be submitted to the Capitol
10 Liaison. The Capitol Liaison shall submit all proposals to the
11 State Capitol Preservation Commission for approval, as defined by
12 Sections 15.1 and 15.3 of this title.

13 E. The Capitol Liaison shall be the primary liaison for all
14 tenants that occupy space in the State Capitol Building.

15 SECTION 3. AMENDATORY 73 O.S. 2021, Section 345, is
16 amended to read as follows:

17 Section 345. A. In addition to any other authorization
18 provided by law, the Oklahoma Capitol Improvement Authority is
19 authorized to issue obligations to acquire real property, together
20 with improvements located thereon, and personal property to
21 construct improvements to real property and to provide funding for
22 repairs, refurbishments and improvements to real and personal
23 property of the State Capitol Building in a total amount not to
24 exceed One Hundred Twenty Million Dollars (\$120,000,000.00). The

1 funds shall be used for the renovation, repair and remodeling of the
2 State Capitol Building.

3 B. The Authority may hold title to the property and
4 improvements until such time as any obligations issued for this
5 purpose are retired or defeased and may lease the property and
6 improvements to the Office of Management and Enterprise Services.
7 Upon final redemption or defeasance of the obligations created
8 pursuant to this section, title to the property and improvements
9 shall be transferred from the Oklahoma Capitol Improvement Authority
10 to the Office of Management and Enterprise Services.

11 C. For the purposes of paying the costs for construction of the
12 real property and improvements, and providing funding for the
13 project authorized in subsection A of this section, and for the
14 purpose authorized in subsection D of this section, the Authority is
15 hereby authorized to borrow monies on the credit of the income and
16 revenues to be derived from the leasing of such property and
17 improvements and, in anticipation of the collection of such income
18 and revenues, to issue negotiable obligations in a total amount not
19 to exceed One Hundred Twenty Million Dollars (\$120,000,000.00)
20 whether issued in one or more series. The Authority is authorized
21 to capitalize interest on the obligations issued pursuant to this
22 section for a period ~~of~~ not to exceed one (1) year from the date of
23 issuance. For subsequent fiscal years, it is the intent of the
24 Legislature to appropriate to the Office of Management and

1 Enterprise Services sufficient monies to make rental payments for
2 the purpose of retiring the obligations created pursuant to this
3 section. To the extent funds are available from the proceeds of the
4 borrowing authorized by this subsection, the Oklahoma Capitol
5 Improvement Authority shall provide for the payment of professional
6 fees and associated costs related to the project authorized in
7 subsection A of this section.

8 D. The Authority may issue obligations in one or more series
9 and in conjunction with other issues of the Authority. The
10 Authority is authorized to hire bond counsel, financial consultants,
11 and such other professionals as it may deem necessary to provide for
12 the efficient sale of the obligations and may utilize a portion of
13 the proceeds of any borrowing to create such reserves as may be
14 deemed necessary and to pay costs associated with the issuance and
15 administration of such obligations.

16 E. The obligations authorized under this section may be sold at
17 either competitive or negotiated sale, as determined by the
18 Authority, and in such form and at such prices as may be authorized
19 by the Authority. The Authority may enter into agreements with such
20 credit enhancers and liquidity providers as may be determined
21 necessary to efficiently market the obligations. The obligations
22 may mature and have such provisions for redemption as shall be
23 determined by the Authority, but in no event shall the final
24

1 maturity of such obligations occur later than ten (10) years from
2 the first principal maturity date.

3 F. Any interest earnings on funds or accounts created for the
4 purposes of this section may be utilized as partial payment of the
5 annual debt service or for the purposes directed by the Authority.

6 G. The obligations issued under this section, the transfer
7 thereof and the interest earned on such obligations, including any
8 profit derived from the sale thereof, shall not be subject to
9 taxation of any kind by ~~the State of Oklahoma~~ this state, or by any
10 county, municipality or political subdivision therein.

11 H. The Authority may direct the investment of all monies in any
12 funds or accounts created in connection with the offering of the
13 obligations authorized under this section. Such investments shall
14 be made in a manner consistent with the investment guidelines of the
15 State Treasurer. The Authority may place additional restrictions on
16 the investment of such monies if necessary to enhance the
17 marketability of the obligations.

18 ~~I. There is hereby created a State Capitol Repair Expenditure~~
19 ~~Oversight Committee. The proceeds from the sale of obligations~~
20 ~~issued pursuant to the provisions of this section and Section 1 of~~
21 ~~Enrolled House Bill No. 3168 of the 2nd Session of the 55th Oklahoma~~
22 ~~Legislature that are needed for repairs to the interior and exterior~~
23 ~~of the State Capitol shall be subject to the approval of the State~~
24 ~~Capitol Repair Expenditure Oversight Committee; provided, however,~~

1 ~~the expenditure of those proceeds shall be subject to a request for~~
2 ~~proposal process.~~

3 ~~The Committee shall be composed of nine (9) members as follows:~~

4 ~~1. Three persons to be appointed by the Governor, one of whom~~
5 ~~shall serve as chair of the Committee;~~

6 ~~2. Three legislators to be appointed by the Speaker of the~~
7 ~~House of Representatives, two of whom shall be members of the~~
8 ~~majority political party and one of whom shall be a member of the~~
9 ~~minority political party; and~~

10 ~~3. Three legislators to be appointed by the President Pro~~
11 ~~Tempore of the Senate, two of whom shall be members of the majority~~
12 ~~political party and one of whom shall be a member of the minority~~
13 ~~political party. Five members of the Committee shall constitute a~~
14 ~~quorum and the vote of five members shall be necessary for any~~
15 ~~action taken by the Committee. The Committee shall be staffed by~~
16 ~~employees of the Office of Management and Enterprise Services. The~~
17 ~~Committee shall be subject to the Oklahoma Open Meeting Act.~~

18 ~~J. The Committee shall deliver a preliminary plan for the~~
19 ~~renovation, repair and remodeling of the State Capitol to the~~
20 ~~Director of the Office of Management and Enterprise Services no~~
21 ~~later than December 31, 2014. The preliminary plan shall include~~
22 ~~the following components:~~

23 ~~1. Establishment of the Office of Management and Enterprise~~
24 ~~Services' goal and criteria for use by the vendor; and~~

1 ~~2. Selection criteria for the design-build team vendor to be~~
2 ~~selected through a Request For Proposal process.~~

3 ~~K. Following receipt of the preliminary plan as approved by the~~
4 ~~Committee, the Office of Management and Enterprise Services shall~~
5 ~~solicit Requests For Proposals to select the vendor for the project.~~

6 ~~L. The Committee shall deliver a final plan to the Director of~~
7 ~~the Office of Management and Enterprise Services no later than June~~
8 ~~30, 2015. The final plan shall include the following components:~~

9 ~~1. Approval of the final scope of work developed by the vendor;~~
10 ~~and~~

11 ~~2. Approval of the project phasing developed by the vendor.~~

12 ~~M. Following delivery of the final plan, the Committee shall~~
13 ~~continue to oversee the expenditure of proceeds from the sale of~~
14 ~~obligations issued pursuant to the provisions of this section and~~
15 ~~Section 1 of Enrolled House Bill No. 3168 of the 2nd Session of the~~
16 ~~55th Legislature, until completion of the renovation, repair and~~
17 ~~remodeling of the State Capitol. The Committee may also propose and~~
18 ~~approve amendments to the plan as it deems appropriate.~~

19 ~~N. The Director of the Office of Management and Enterprise~~
20 ~~Services shall have responsibility to substantially implement the~~
21 ~~plan as presented by the Committee; provided, the President Pro~~
22 ~~Tempore of the Senate or the Speaker of the House of Representatives~~
23 ~~shall approve all proposed designs related to renovation, repair and~~
24 ~~remodeling of space within the State Capitol Building under the~~

~~management and control of the Legislature and allocated to that officer's house of the Legislature pursuant to the provisions of Section 15.1 of this title, and any subsequent changes to such plans. Joint approval of the President Pro Tempore of the Senate and the Speaker of the House of Representatives shall be required for such plans for space under the management and control of the Legislature and not allocated to a specific house of the Legislature. Such approval shall be in writing.~~

~~O. Insofar as they are not in conflict with the provisions of this section, the provisions of Section 151 et seq. of this title shall apply to this section.~~

SECTION 4. AMENDATORY 74 O.S. 2021, Section 4101, is amended to read as follows:

Section 4101. As used in Sections 4101 through ~~4108~~ 4110.1 of this title:

1. "Public areas" means those areas in the State Capitol Building open to the general public for general visitation; ~~and~~

2. "Art" means fine art of museum quality representing the highest quality of art objects available to include paintings, murals, graphic arts, art photography and sculpture, aesthetically aligned with recognized values, created by the conscious use of skill and creative imagination;

3. "Design standards" means a document that is produced for the purpose of guiding review of proposed alterations to the State

1 Capitol Building, grounds, and Governor's Mansion. Design standards
2 shall establish the acceptable level of finishes for the historic
3 fabrics, features, and materials in use in the State Capitol
4 Building, and specify alterations which, if followed, will provide
5 compatible design;

6 4. "Enhancement" means an increase or improvement upon the
7 quality, value, or extent of the original design intent of the State
8 Capitol Building, grounds, or Governor's Mansion;

9 5. "Grounds" means all land surrounding the State Capitol
10 Building and bordered by Lincoln Boulevard;

11 6. "Maintenance" means keeping spaces, structures, and
12 infrastructure in proper operating condition in a routine,
13 scheduled, or anticipated fashion to prevent failure or degradation;

14 7. "Modification" means any change to an existing physical
15 attribute of the State Capitol Building, grounds, or Governor's
16 Mansion;

17 8. "Preservation" means the act or process of applying measures
18 necessary to sustain the existing form, integrity, and materials of
19 a historic property including preliminary measures to protect and
20 stabilize the property, and focusing upon the ongoing maintenance
21 and repair of historic materials and features, rather than extensive
22 replacement and new construction; and

23 9. "Restoration" means the act or process of accurately
24 depicting the form, features, and character of the State Capitol

1 Building as the building appeared in 1917, and the dome in 2002, by
2 means of the removal of features from later periods in its history
3 and reconstruction of missing features from the restoration period.

4 SECTION 5. AMENDATORY 74 O.S. 2021, Section 4102, as
5 amended by Section 1, Chapter 15, O.S.L. 2024 (74 O.S. Supp. 2024,
6 Section 4102), is amended to read as follows:

7 Section 4102. There is hereby re-created the State Capitol
8 Preservation Commission which shall be responsible for planning and
9 supervising the preservation and restoration of the interior and
10 exterior of the State Capitol Building, hereinafter referred to as
11 the Capitol, and the Governor's Mansion. The Commission shall
12 control the display of art objects in public areas of the Capitol
13 jointly controlled by the Senate and the House of Representatives
14 and in the Governor's Mansion. The State Capitol Preservation
15 Commission shall provide the highest-quality maintenance,
16 restoration, preservation, enhancement, and modification of and
17 long-term planning for the interior and exterior of the State
18 Capitol Building and grounds for the perpetual use by the state
19 government and the enjoyment of all persons.

20 SECTION 6. AMENDATORY 74 O.S. 2021, Section 4103, is
21 amended to read as follows:

22 Section 4103. A. The State Capitol Preservation Commission
23 shall be composed of fifteen (15) members as follows:
24

1 1. ~~Three members shall be appointed by the~~ The Governor, or a
2 designee;

3 2. One member to be appointed by the Governor;

4 ~~2.~~ 3. ~~Three members shall be appointed by the~~ The Secretary of
5 State, or a designee;

6 4. The President Pro Tempore of the Senate, or a designee;

7 ~~3.~~ 5. ~~Three members shall be appointed by the~~ The Speaker of
8 the House of Representatives, or a designee;

9 ~~4.~~ 6. ~~One member shall be appointed by the~~ The Chief Justice of
10 the Oklahoma Supreme Court, or a designee; and

11 ~~5.~~ 7. One member of the Senate appointed by the President Pro
12 Tempore of the Senate;

13 8. One former member of the Senate appointed by the President
14 Pro Tempore of the Senate;

15 9. One member of the House of Representatives appointed by the
16 Speaker of the House of Representatives;

17 10. One former member of the House of Representatives appointed
18 by the Speaker of the House of Representatives; and

19 11. The following shall be ex officio nonvoting members:

20 a. ~~Chairman~~ the Executive Director of the Oklahoma Arts
21 Council, or a designee,

22 b. ~~President~~ the Executive Director of the Oklahoma
23 Historical Society, or a designee,

24 c. the Capitol Architect and Curator,

- 1 d. ~~Superintendent of the Capitol~~ the Capitol Liaison, and
2 e. the Director of the Office of Management and
3 Enterprise Services, or a designee.

4 B. ~~The initial term of office of the appointed members shall be~~
5 ~~as follows:~~

6 1. ~~One of the members appointed by the Governor, the President~~
7 ~~Pro Tempore of the Senate, the Speaker of the House of~~
8 ~~Representatives, and the member appointed by the Chief Justice of~~
9 ~~the Oklahoma Supreme Court shall serve a one-year term;~~

10 2. ~~One of the members appointed by the Governor, the President~~
11 ~~Pro Tempore of the Senate, and the Speaker of the House of~~
12 ~~Representatives shall serve a three-year term; and~~

13 3. ~~One of the members appointed by the Governor, the President~~
14 ~~Pro Tempore of the Senate, and the Speaker of the House of~~
15 ~~Representatives shall serve a five-year term.~~

16 ~~The term of office for each successor shall be for five (5)~~
17 ~~years. Any member of the Legislature who is appointed to the~~
18 ~~Commission shall serve only as long as the member is a member of the~~
19 ~~respective house from which the member was appointed. All appointed~~
20 ~~voting and ex officio nonvoting members of the State Capitol~~
21 ~~Preservation Commission shall serve at the pleasure of their~~
22 ~~appointing authority.~~

23 C. ~~The Commission shall elect a chair and a vice-chair from its~~
24 ~~membership to serve for a period of two (2) years. The first chair~~

1 of the Commission shall be the Governor, or a designee, who shall
2 serve a term of two (2) years. Thereafter, the chair of the
3 Commission shall rotate between the President Pro Tempore of the
4 Senate, or a designee, the Speaker of the House of Representatives,
5 or a designee, and the Governor, or a designee, for two-year
6 increments in perpetuity. Members of the Commission shall not be
7 compensated except for reimbursement as provided in the State Travel
8 Reimbursement Act.

9 D. The Office of Management and Enterprise Services shall make
10 the necessary arrangements for support services for the State
11 Capitol Preservation Commission. The State Capitol Preservation
12 Commission shall meet at least once per quarter and at the call of
13 the chair as needed. A quorum of the voting members shall be
14 present for any action taken. A quorum is the majority of the
15 appointed voting members. The Commission shall be subject to the
16 Oklahoma Open Meeting Act.

17 E. The Commission functions performed by the Governor,
18 President Pro Tempore of the Senate, Speaker of the House of
19 Representatives, Secretary of State, and appointed Senators and
20 Representatives are additional functions of their other public
21 offices and duties.

22 SECTION 7. AMENDATORY 74 O.S. 2021, Section 4104, is
23 amended to read as follows:
24

1 Section 4104. A. The State Capitol Preservation Commission
2 shall provide oversight to the Office of Management and Enterprise
3 Services on duties for management and maintenance of the State
4 Capitol Building and shall:

5 1. ~~Research, plan, and have control of modifications and decor~~
6 ~~of the interior and exterior of~~ Approve the restoration,
7 preservation, enhancement, or modification of the State Capitol
8 Building, grounds, and the Governor's Mansion;

9 2. ~~Establish standards for the acquisition and display of works~~
10 ~~of art for public display in the Capitol~~ Review and approve the
11 annual budget and the long-range master plan submitted by the Office
12 of Management and Enterprise Services for the State Capitol
13 Building, grounds, and the Governor's Mansion and select such works.
14 ~~Such works of art shall be directly related to the history and~~
15 ~~culture of the State of Oklahoma;~~

16 3. ~~Establish procedures by which private contributions of~~
17 ~~suitable art can be accepted for the Capitol and the Governor's~~
18 ~~Mansion. The Commission is authorized to accept and make proper~~
19 ~~disposition of works of art as may be donated to the Commission and~~
20 ~~this state;~~

21 4. ~~Have authority to approve and submit to the Long-Range~~
22 ~~Capital Planning Commission any proposed modification, alteration,~~
23 ~~renovation, repair, or construction on any part of the Capitol and~~
24 ~~the Governor's Mansion~~ Review and approve all requests for

1 preservation, restoration, enhancement, and modification to the
2 State Capitol Building, grounds, and Governor's Mansion submitted by
3 the Capitol Liaison. This review and approval process shall not
4 apply to actions deemed by the State Capitol Building Superintendent
5 to be maintenance necessary for the upkeep and function of the State
6 Capitol Building, grounds, and Governor's Mansion; and

7 4. Review and approve a security plan submitted by the
8 Department of Public Safety for the State Capitol Building, grounds,
9 and Governor's Mansion;

10 5. Have final approval authority for any plans or programs for
11 the restoration, preservation, or display of fine art programs in
12 and surrounding the State Capitol Building and the Governor's
13 Mansion;

14 6. Review and approve administrative rules submitted by the
15 Office of Management and Enterprise Services or the Capitol Liaison
16 concerning the State Capitol Building, its contents, and its
17 concerns;

18 7. Review and approve preservation zones and design standards
19 for the State Capitol Building, grounds, and Governor's Mansion;

20 8. Review and approve standards for the selection,
21 contributions, and acquisition of works of art and monuments for
22 permanent and temporary public display in the public spaces
23 controlled jointly by the Senate and the House of Representatives in
24

1 the State Capitol Building. Such works of art shall be directly
2 related to the history and culture of this state; and

3 9. Provide oversight and accountability inspections of
4 maintenance, restoration, preservation, enhancement, and
5 modification projects to ensure all projects conform to design
6 standards.

7 ~~B. The Long Range Capital Planning Commission shall submit any~~
8 ~~capital construction or renovation project with respect to the State~~
9 ~~Capitol or the Governor's Mansion to the State Capitol Preservation~~
10 ~~Commission for its advisory opinion prior to consideration by the~~
11 ~~Long Range Capital Planning Commission~~ On and after the effective
12 date of this act, the State Capitol Preservation Commission shall
13 assume oversight responsibility for restoration projects for the
14 State Capitol Building and the Governor's Mansion from the State
15 Capitol Repair Expenditure Oversight Committee created in Section
16 345 of Title 73 of the Oklahoma Statutes.

17 SECTION 8. AMENDATORY 74 O.S. 2021, Section 4105, is
18 amended to read as follows:

19 Section 4105. There is hereby established the position of the
20 Capitol Architect and Curator who shall:

21 1. Develop the technical plans and programs for consideration
22 by the State Capitol Preservation Commission ~~and the Long Range~~
23 ~~Capital Planning Commission~~ with regard to restoration, renovation,
24

1 and preservation of the State Capitol Building and the Governor's
2 Mansion;

3 ~~2. Develop and enforce standards adopted for acquisition and~~
4 ~~display of works of art in and surrounding~~ Advise the State Capitol
5 Preservation Commission regarding the space demands of the various
6 agencies in the State Capitol Building and the Governor's Mansion;

7 ~~3. Coordinate space demands of the various agencies in the~~
8 ~~Capitol and the Governor's Mansion;~~

9 ~~4.~~ Maintain a record of all structural and decor changes made
10 in the State Capitol Building and the Governor's Mansion; and

11 ~~5.~~ 4. Make recommendations to the State Capitol Preservation
12 Commission for design standards and of necessary action on proposed
13 restoration, preservation, enhancement, and modifications in decor
14 or design to ensure preservation and maintenance of the cultural and
15 historic integrity of the State Capitol Building and the Governor's
16 Mansion; and

17 5. Make recommendations to the State Capitol Preservation
18 Commission for preservation zones and design standards.

19 The Director of the Office of Management and Enterprise Services
20 may contract for the services of a Capitol Architect and Curator or
21 employ such an individual on either a full- or part-time basis.
22 Compensation for the position will be in accord with similar
23 professional positions in state government.

1 SECTION 9. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 4105.1 of Title 74, unless there
3 is created a duplication in numbering, reads as follows:

4 A. The State Capitol Building duties of the Office of
5 Management and Enterprise Services (OMES) are as follows:

6 1. OMES shall have the responsibility for maintenance,
7 restoration, preservation, enhancement, and modification of the
8 State Capitol Building, grounds, and Governor's Mansion including
9 facilities planning, facilities construction, and facilities
10 administration;

11 2. OMES shall be responsible for all maintenance duties
12 necessary to properly preserve and maintain the State Capitol
13 Building, grounds, and Governor's Mansion;

14 3. OMES shall be responsible for devising and developing
15 processes for tenants in the State Capitol Building to submit
16 requests for maintenance, restoration, preservation, enhancement,
17 and modification and evaluating such requests;

18 4. OMES shall manage each project, except in State Capitol
19 Building areas allotted to the Senate and the House of
20 Representatives as defined in Section 15.1 of Title 73 of the
21 Oklahoma Statutes, to ensure execution of the highest-quality work
22 product, time-cost schedules, and efficient contract performance;

23 5. OMES shall be responsible for producing an annual budget and
24 submitting it to the State Capitol Preservation Commission;

1 6. OMES shall be responsible for creating a long-range master
2 plan for the maintenance and upkeep of the State Capitol Building
3 and grounds which shall be submitted to the State Capitol
4 Preservation Commission every three (3) years;

5 7. OMES shall contract with the Oklahoma Tourism and Recreation
6 Department and Oklahoma Arts Council to operate the visitor center,
7 visitor relations activities, and tours in the State Capitol
8 Building;

9 8. OMES shall be responsible for operation of all dining and
10 vending services in the State Capitol Building and shall approve
11 food trucks and other mobile food preparation vehicles on the
12 grounds unless approved by the Legislature;

13 9. OMES shall be responsible for taking and approving
14 reservations in all meeting rooms and areas of the State Capitol
15 Building and grounds and shall seek approval from the Senate, House
16 of Representatives, or jointly for space allocated to the
17 Legislature by Section 15.1 of Title 73 of the Oklahoma Statutes;

18 10. OMES shall coordinate with the Oklahoma Arts Council for
19 curation of and care for artwork in the State Art Collection,
20 Capitol Art Collection, and monuments, memorials, and all temporary
21 exhibits in public areas at the State Capitol Building and grounds;

22 11. OMES shall be responsible for submitting proposed
23 administrative rules to the State Capitol Preservation Commission to
24 govern the execution of these duties;

1 12. OMES may collect rent from third-party vendors in the State
2 Capitol Building and proceeds from the sales of merchandise or
3 services rendered;

4 13. OMES shall have the authority to respond promptly to
5 emergency maintenance needs as they arise;

6 14. OMES shall serve as the primary contact for Americans with
7 Disabilities Act of 1990 (ADA) compliance for the State Capitol
8 Building; and

9 15. OMES shall collaborate with the Department of
10 Transportation for all maintenance, upkeep, and access to all
11 parking lots on the grounds of the State Capitol Building.

12 B. The Office of Management and Enterprise Services shall
13 employ all staff and consultants necessary to perform the duties of
14 OMES including, but not limited to, a licensed architect.

15 SECTION 10. AMENDATORY 74 O.S. 2021, Section 4108, is
16 amended to read as follows:

17 Section 4108. The provisions of Sections 4101 through ~~4107~~
18 4110.1 of this title shall apply to all modifications in the
19 structure or decor of the State Capitol Building, grounds, and the
20 Governor's Mansion except for those immediate emergency repairs
21 needed to prevent loss or damage to property or to protect the
22 health and safety of the public during use of the building and any
23 art displayed on the grounds.
24

1 SECTION 11. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 4108.1 of Title 74, unless there
3 is created a duplication in numbering, reads as follows:

4 The Oklahoma Arts Council shall be given the responsibility to
5 acquire, maintain, preserve, or restore any state-owned art in the
6 State Art Collection or Capitol Art Collection that is in storage or
7 on display in the State Capitol Building and grounds. The council
8 is authorized to hold exhibitions and commissions to display art to
9 the general public. The Oklahoma Arts Council may request direct
10 appropriations or submit requests to the Office of Management and
11 Enterprise Services.

12 SECTION 12. AMENDATORY 74 O.S. 2021, Section 4109, is
13 amended to read as follows:

14 Section 4109. ~~By the order of the Director of the Office of~~
15 ~~Management and Enterprise Services, restoration and preservation~~
16 Maintenance, restoration, preservation, enhancement, and
17 modification projects of the State Capitol Building, grounds, or ~~of~~
18 ~~the~~ Governor's Mansion may be exempted from the provisions of the
19 Public Competitive Bidding Act of 1974, Section 101 et seq. of Title
20 61 of the Oklahoma Statutes. For exempted State Capitol Building or
21 Governor's Mansion construction projects, the Office of Management
22 and Enterprise Services shall select among contractors qualified by
23 past experience to conduct historical preservation projects.

1 SECTION 13. REPEALER 74 O.S. 2021, Sections 4106 and
2 4107, are hereby repealed.

3 SECTION 14. It being immediately necessary for the preservation
4 of the public peace, health or safety, an emergency is hereby
5 declared to exist, by reason whereof this act shall take effect and
6 be in full force from and after its passage and approval.

7 COMMITTEE REPORT BY: COMMITTEE ON RETIREMENT AND GOVERNMENT
8 RESOURCES
9 February 19, 2025 - DO PASS AS AMENDED
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